

26CMCV00662 26CMCV00662

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-08-20

Motion: DEFENDANT GENERAL MOTORS LLC'S DEMURRER TO PLAINTIFF'S COMPLAINT DATE: August 20, 2026
TIME: 8:30 A.M.

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CE%2C08%2F20%2F2026

Source SHA-256: 3406b7b06d0e47d708ce5fd0b5796678040d44133b3f1f0b062270ae1c04c127

Case Number: 26CMCV00662 Hearing Date: August 20, 2026 Dept: E

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

JOSE DE JESUS SANCHEZ SANCHEZ,

Plaintiff,

vs.

GENERAL MOTORS, LLC.; and DOES 1 through 10, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 26CMCV00662

[TENTATIVE] ORDER RE: DEFENDANT GENERAL MOTORS LLC'S DEMURRER TO
PLAINTIFF'S COMPLAINT

DATE: August 20, 2026

TIME: 8:30 A.M.

DEPT.: E

Moving Party: Defendant General Motors, LLC

Responding Party: Plaintiff

Jose de Jesus Sanchez Sanchez

Notice: Ok

Tentative Ruling: Defendant's Demurrer is SUSTAINED IN PART with 30
days' leave to amend.

I.

BACKGROUND

This is a Song-Beverly Action arising from
the purchase of an allegedly defective 2022 GMC Sierra 1500 (the "Subject
Vehicle"). Plaintiff Jose De Jesus Sanchez Sanchez ("Plaintiff") alleges that
the Subject Vehicle was warranted, manufactured and/or distributed by Defendant

General Motors, LLC (“Defendant” or “GM”) and defects and nonconformities to warranty manifested themselves within the express warranty period. Plaintiff alleges that the Subject Vehicle’s defects and/or nonconformities substantially impair the use, value or safety of the Subject Vehicle, the value of the Subject Vehicle is de minimis, and GM had failed to repurchase, replace or reimburse Plaintiff for the Subject Vehicle.

Plaintiff filed his Complaint on April 8, 2026 against GM and Does 1 through 10, inclusive, alleging causes of action for: (1) Violation of Subdivision (D) of Civil Code Section 1793.2; (2) Violation of Subdivision (B) of Civil Code Section 1793.2; (3) Violation of Subdivision (A)(3) of Civil Code Section 1793.2; (4) Breach of the Implied Warranty of Merchantability (Civ. Code, § 1791.1, § 1794, § 1795.5); and (5) Fraudulent Inducement – Concealment.

On May 1, 2026, GM filed the instant Demurrer.

On June 5, 2026, Plaintiff filed his Opposition.

On June 9, 2026, GM filed its Reply.

II.

ANALYSIS

A.

Legal Standard

A party may demur to a complaint on the grounds that it “does not state facts sufficient to constitute a cause of action.” (Code Civ. Proc. § 430.10(e).)

A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747 (“Hahn”).) ∴

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.” (SKF Farms v. Superior Court (1984)

153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn, supra, 147 Cal.App.4th at p. 747.) On demurrer, a court does “not accept contentions, deductions or conclusions of fact or law.” (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

B.

Meet and Confer

Before filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41(a).)

GM's counsel, Sarah Perez (“Perez”), attests that on April 22, 2026, counsel for GM met and conferred by telephone with plaintiff's counsel, Jacob Lister of Strategic Legal Practices regarding GM's intended Demurrer to the Complaint. (Perez Decl., ¶ 2.) The parties could not resolve the issues. (Id.)

The Court finds that GM has satisfied the statutory meet-and-confer requirement.

C.

Demurrer to Plaintiff's Complaint

GM demurs to the Fifth Cause of Action for Fraudulent Inducement - Concealment in Plaintiff's Complaint on the grounds that the Complaint fails to allege facts sufficient to state a cause of action. GM argues that Plaintiff

has not pled his fraudulent concealment claim with the requisite specificity. GM also argues that Plaintiff has failed to state facts demonstrating a transactional relationship between GM and Plaintiff that would give rise to a duty to disclose any defects in the Subject Vehicle.

The elements of fraud based on a failure to warn, or concealment of fact, are (1) concealment of a material fact, (2) a duty to disclose the fact to the plaintiff, (3) intentional concealment or suppression of the fact with the intent to defraud the plaintiff, (4) that the plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiffs sustained damage.¿ (See CACI No. 1901; see also *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 41, 43–44 (“*Rattagan*”).)

1.

Sufficiency

GM argues the Complaint merely describes a list of ways in which the 2022 GM Sierra 1500 8-speed transmission may be defective but that none of these allegations state the actual alleged defect in this particular vehicle. GM argues Plaintiff alleges what can be wrong with the transmission but does not allege what he actually observed in his vehicle. GM also argues that Plaintiff fails to entirely identify who made the alleged omissions when he purchased the Vehicle.

GM relies on *Rattagan* to provide the basis for its specificity requirement. *Rattagan* reaffirms and clarifies the parameters for pleading fraudulent inducement in this context; the *Rattagan* Court held that the same specificity pleading standard for affirmative fraud applies to fraudulent concealment claims and clarified that “the focus of inquiry shifts to the unique elements of the claim. [Citations.]” (*Rattagan*, *supra*, 17 Cal.5th at p. 43.) Thus, in a concealment claim based on a defendant’s duty to disclose arising from the defendant’s exclusive knowledge, the complaint must specifically allege “(1) the content of the omitted facts, (2) defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant’s omission.” (*Id.* at p. 43–44.)

Plaintiff argues in opposition that “in cases claiming fraud through non-disclosure, it is not practical to allege facts showing how, when and by what means something did not happen.” (Opp. p. 3:13-14 (citing *Alfaro v. Community Housing Improvement System & Planning Association, Inc.* (2009) 171 Cal.App.4th 1356, 1384.)) Plaintiff argues that the Complaint sufficiently pleads the elements of fraudulent inducement by concealment under *Dhital v. Nissan* (2022) 84 Cal.App.5th 828. Plaintiff contends his allegations suffice in that he alleges that he entered into a warranty relationship with GM on January 23, 2023, identified the material facts GM knew prior to his acquisition of the Vehicle that GM withheld, alleged that Defendant had superior knowledge of the facts and the safety risks posed by the Transmission Defect, alleged the materiality of that information, and alleged reliance on the non-disclosure and damages. (Opp., p. 4:9-13.)

In support of his fraud claim, Plaintiff alleges that “GM committed fraud by allowing the Vehicle to be sold to Plaintiff without disclosing that the Vehicle and its 8-speed transmission were defective and susceptible to sudden and premature failure. Plaintiff purchased the Subject Vehicle equipped with GM’s defective 8-speed transmission.” (Compl., ¶ 47.) Plaintiff further alleges that “[s]pecifically, Defendant GM knew that the 8-speed transmission had one or more defects that can result in (1) hesitation or delayed acceleration, (2) harsh or hard shifting, (3) jerking, (4) shuddering, or juddering, (5) surging and/or inability to control the vehicle’s speed, acceleration, or deceleration, (6) symptoms requiring reprogramming of the transmission control module (‘TCM’) and/or the powertrain control module (‘PCM’), (7) failure or replacement of the transmission (‘Transmission Defect’).” (Id., ¶ 49 (emphasis added).)

However, Plaintiff fails to provide any further clarification for the transmission defects and/or engine defects that the Subject Vehicle actually exhibited. As described above, Plaintiffs’ allegations regarding the defects or nonconformities exhibited by the Subject Vehicle all relate to defects or nonconformities that the Subject Vehicle “can” suffer from; the Complaint entirely fails to allege that the Subject Vehicle actually exhibited any of these alleged defects. (See Compl. ¶¶ 11-12; 48-49 (Each alleging, without any specificity as to the Subject Vehicle, vague “defects and nonconformities”).) And Plaintiff’s allegations that the Subject Vehicle was manufactured with the defective 8-speed transmission, or that GM knew that the Subject Vehicle and its transmission/engine suffered from inherent defects do not suffice to cure this deficiency. (See, e.g., Compl. ¶ 50.) GM’s alleged knowledge of

defects that may or may not have affected Plaintiff is insufficient; instead, Plaintiff has ample ability to plead what defects Plaintiff's Subject Vehicle actually suffered from, why he brought the Subject Vehicle in for repair, and/or any of the alleged defects that actually impaired Plaintiff's use of the Subject Vehicle. 22

Accordingly, the Court SUSTAINS GM's demurrer to Plaintiff's Fifth Cause of Action for Fraudulent Inducement – Concealment based on lack of specificity, with thirty (30) days leave to amend.

2.

Duty to Disclose

GM also argues that Plaintiff does not allege any kind of fiduciary relationship with it and also does not allege a direct transactional relationship.

A duty to disclose a material fact can arise if: (1) it is imposed by statute; (2) the defendant is acting as plaintiff's fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment). 2 (Civ. Code § 1710; Rattagan, supra, 17 Cal.5th at p. 41.) 22

"Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as 'between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.' (LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 337 ("LiMandri").] 'Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.' [Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312 ("Bigler-Engler").]" (Rattagan, supra, at p. 41.) 222

The Court notes that, even if there is no direct transaction between Plaintiff and GM, a vendor has an affirmative duty to disclose material facts “not only to immediate purchasers, but also to subsequent purchasers when the vendor has reason to expect that the item will be resold.” (OCM Principle Opportunities Fund v. CIBC World Markets Corp. (2007) 157 Cal.App.4th 835, 859–860 (emphasis in original).) Here, GM certainly expects its authorized retail dealerships to sell the vehicles it manufactures and/or distributes to purchasers.¿¿

Further, the Court notes that Plaintiff has alleged a direct transactional relationship with through the warranty contract at the heart of this case. (See Compl. ¶ 6.)

GM argues that there is no duty to disclose here because Plaintiff does not allege that he purchased the Subject Vehicle directly from GM, and therefore there was no direct transaction. (See Bigler-Engler, supra, 7 Cal.App.5th at p. 311.) This, however, is an unduly restrictive formulation of the language in Bigler-Engler and the cases it cites. Read out of context, the phrase “direct dealings between the plaintiff and the defendant” could possibly exclude a manufacturer’s warranty not negotiated but rather put in place at the time of sale without face-to-face interaction.¿But, read in context with the rest of the Bigler-Engler Court’s formulation, a manufacturer’s warranty is a “direct dealing” between plaintiff and defendant as it is not something between defendant and the public at large. Rather, it is an agreement between GM and a specific subset of the public—those who purchase GM’s products.

Accordingly, Defendant’s Demurrer to Plaintiff’s Fifth Cause of Action premised upon failure to allege a duty to disclose is OVERRULED.

III.

CONCLUSION

In accordance with the above analysis, GM’s Demurrer to Plaintiff’s Fifth Cause of Action within Plaintiff’s Complaint is SUSTAINED IN PART with 30 days’ leave to amend.

The Case Management Conference is CONTINUED to November 5, 2026 at 8:30 a.m. in Dept. E.